

Shri Pal Singh v. State of U.P.

Allahabad High Court · Division Bench · 11 December 2019 · WRIT - C No. - 40851 of 2019 · **Writ disposed; appear before EE for speaking order; s.127 open**

HEADNOTE

A writ against a recovery notice is disposed of by directing the consumer to appear before the Executive Engineer with objections and evidence; the Engineer is to pass a speaking and reasoned final order; coercive recovery is stayed for a limited period; and a Section 127 appeal is left open if the consumer is aggrieved by that final order. Default in appearance revives the recovery citation.

FACTUAL SUMMARY

Shri Pal Singh challenged a 22 November 2019 recovery notice of the electricity department, alleging coercive action without hearing and without following the U.P. Electricity Supply Code, 2005. The Division Bench heard counsel for the petitioner and the department. Without deciding the validity of the notice, the Court directed him to appear before the Executive Engineer on 23 December 2019 with objections and evidence, required a speaking final order within four weeks, and stayed coercive action for seven weeks.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

relegation after speaking final order on recovery notice

HOLDING

A writ petition seeking certiorari against a recovery notice is disposed of without examining the merits of the recovery or alleged Supply Code breach: the consumer shall appear before the Executive Engineer with objections and evidence; the Engineer shall pass a speaking and reasoned final order within four weeks; coercive action is stayed for seven weeks or till disposal of the objection, whichever is earlier; and if aggrieved by the final order the consumer may appeal under Section 127 of the Electricity Act, 2003. Default in appearance or in filing the objection revives the recovery citation and vacates the interim protection. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 After directing the Executive Engineer to pass a speaking final order on the consumer's objections to a recovery notice, the Court left any further challenge to an appeal under Section 127, without deciding the validity of the notice. ¶ 1

alternative-remedy-section-127-appeal The writ was not decided on the electricity dispute; the consumer was told that if aggrieved by the Engineer's final order it would be open to appeal under Section 127 of the Electricity Act, 2003 in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE 22.11.2019 RECOVERY NOTICE WAS ISSUED WITHOUT OPPORTUNITY OF HEARING OR IN BREACH OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

¶ 1

NOT DECIDED — MERITS AND QUANTUM OF THE UNDERLYING RECOVERY

¶ 1

